

Court No. - 1

Case :- WRIT - C No. - 37766 of 2019

Petitioner :- Rajendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anupama Tripathi, Rakesh Kumar Tripathi

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Heard Sri Rakesh Kumar Tripathi, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for respondent.

Learned counsel for the petitioner has come up before this Court disputing the bill which is in question.

Learned counsel appearing for the Electricity Department has raised preliminary objection that the petitioner has alternative remedy to file representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and against the order passed thereunder, the petitioner has remedy to approach UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007.

In view of the above, we **dispose of** the writ petition with liberty to the petitioner that in the event he apply for under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed bill within ten days from today along with certified copy of this order the same shall be considered in accordance with law and shall be disposed of within a further period of six weeks.

Order Date :- 21.11.2019

Nitin Verma

(Ajit Kumar, J.) (Ramesh Sinha, J.)